

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Amanda Harouche	Team: Squad #16	CCRB Case #: 201506307	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Saturday, 07/25/2015 10:45 PM	Location of Incident: Willis Avenue and East 146 Street	18 Mo. SOL 1/25/2017	Precinct: 40		
Date/Time CV Reported Thu, 07/30/2015 1:08 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 07/30/2015 1:08 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Paul Oconnor	2856	942285	GANG BX
2. SGT John King	05554	923447	GANG BX

Officer(s)	Allegation	Investigator Recommendation
A . SGT John King	Abuse: Sgt. John King stopped § 87(2)(b)'s car.	A . Unsubstantiated
B . DT3 Paul Oconnor	Abuse: Det. Paul O'Connor questioned § 87(2)(b)	B . Unsubstantiated
C . DT3 Paul Oconnor	Abuse: Det. Paul O'Connor frisked § 87(2)(b)	C . Exonerated
D . DT3 Paul Oconnor	Abuse: Det. Paul O'Connor searched § 87(2)(b)	D . Unsubstantiated
E . DT3 Paul Oconnor	Off. Language: Det. Paul O'Connor made remarks to § 87(2)(b) based upon race.	E . Unsubstantiated
F . SGT John King	Abuse: Sgt. John King frisked § 87(2)(b) and § 87(2)(b)	F . Substantiated
G . SGT John King	Abuse: Sgt. John King searched § 87(2)(b)	G . Unsubstantiated
H . DT3 Paul Oconnor	Abuse: Det. Paul O'Connor searched § 87(2)(b)'s car.	H . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On July 25, 2015, at approximately 10:45 p.m., § 87(2)(b) was driving § 87(2)(b) and § 87(2)(b) to a baby shower in the vicinity of Willis Avenue and East 146th Street in the Bronx. § 87(2)(b)'s car was stopped by Sgt. King and Det. O'Connor (**Allegation A**). § 87(2)(b) was allegedly questioned by Det. O'Connor (**Allegation B**). § 87(2)(b) was then asked to step out of the car and was frisked (**Allegation C**) and allegedly searched (**Allegation D**) by Det. O'Connor. Det. O'Connor then allegedly spoke offensively to § 87(2)(b) by telling him that he did not look like the type to hang out with "white boys" (**Allegation E**). Sgt. King then asked § 87(2)(b) and § 87(2)(b) to step out of the car, one at a time. Sgt. King frisked (**Allegation F**) and allegedly searched (**Allegation G**) § 87(2)(b). Sgt. King then frisked § 87(2)(b) (**within Allegation F**). Det. O'Connor then searched § 87(2)(b)'s car (**Allegation H**). § 87(2)(b) was arrested and charged with § 87(2)(b).

§ 87(4-b), § 87(2)(g)

There is no video footage for this incident. § 87(2)(b) and § 87(2)(b) did not provide sworn statements for this investigation.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation (Board Review 01).
- As of October 20, 2015, § 87(2)(b) has not filed a Notice of Claim with the NYC Comptroller's Office (Board Review 02).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) and § 87(2)(b) (Board Review 05, Board Review 06, Board Review 07).
- Det. O'Connor has been a member of the service for nine years and has had a total of four CCRB cases. Det. O'Connor has had five allegations substantiated against him. In case #201016064, a force, threat of force, discourteous action, frisk and stop were substantiated by the CCRB; the NYPD took no disciplinary action for the force, threat of force and discourtesy and issued Det. O'Connor instructions for the frisk and stop (Board Review 08).
- Sgt. King has been a member of the service for 16 years and has had a total of four cases. No allegations have been substantiated against him (Board Review 09).

Findings and Recommendations

Allegation A – Abuse of Authority: Sgt. John King stopped § 87(2)(b)'s car.

§ 87(2)(g)

It is undisputed that § 87(2)(b)'s car was stopped. § 87(2)(g) reported that he was told he was being stopped because he had driven in the bicycle lane and because he had tinted windows. While § 87(2)(b) conceded that he may have been in the bike lane, it was because he was making a right turn (Board Review 01). The other civilians in the car claim that he officers cited § 87(2)(b) driving in either a bicycle lane or a bus lane and because of § 87(2)(b)'s tinted windows (Board Review 10, Board Review 11).

Both Det. O'Connor and Sgt. King stated that they observed § 87(2)(b)'s car swerve in and out of the bike lane on Willis Avenue a couple of times and decided to stop the car for that observed vehicle infraction. Neither officer remembered tinted windows being a reason for stopping the car (Board Review 12, Board Review 13, Board Review 14, Board Review 15).

§ 87(2)(b) was never summonsed or charged with the alleged vehicle infraction that caused the officers to stop the car. § 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B – Abuse of Authority: Det. Paul O'Connor questioned § 87(2)(b)

§ 87(2)(b) stated that when he exited his vehicle, Det. O'Connor asked § 87(2)(b) if he had any tickets or warrants and if he had any marijuana on him. During his formal statement, § 87(2)(b) denied that there was any odor of marijuana in the vehicle at the time of this incident (Board Review 01). During § 87(2)(b)'s phone statement, § 87(2)(b) did not allege that § 87(2)(b) was asked these questions and did not allege that he was asked any similar types of questions (Board Review 10). During § 87(2)(b)'s phone statement, he claimed that § 87(2)(b) and § 87(2)(b) had been asked if they had been arrested before and if they had served any time, though neither § 87(2)(b) nor § 87(2)(b) alleged that they were asked these questions (Board Review 11).

Det. O'Connor stated that he asked § 87(2)(b) if he had any marijuana on him at some point during the incident because during the initial part of the car stop he had smelled a faint smell of marijuana in the car. Det. O'Connor also remembered asking § 87(2)(b) if he had ever been arrested and learning that he had been arrested in the past, but he did not know at what point of

the incident he asked § 87(2)(b) this and thought that he could have asked him when he was being transported to the stationhouse (Board Review 12, Board Review 13).

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation C – Abuse of Authority: Det. Paul O'Connor frisked § 87(2)(b)

It is undisputed that § 87(2)(b) was frisked by Det. O'Connor after § 87(2)(b) informed him that he had a knife in his pocket (Board Review 01, Board Review 12, Board Review 13).

After informing him about the knife, § 87(2)(b) attempted to reach for the knife to hand it to Det. O'Connor, but Det. O'Connor instructed him not to reach for the knife and told him that he would retrieve the knife himself. After Det. O'Connor recovered the knife from § 87(2)(b)'s back pocket, he patted the rest of § 87(2)(b)'s waistband and pants pockets to make sure that there were no other weapons on him since he had already recovered a knife in his back pocket and he had observed a knife in the car (Board Review 12, Board Review 13).

An officer may order a driver and a passenger out of a vehicle during a car stop for a traffic violation. People v. Robinson, 74 N.Y.2d 773 (1989) (Board Review 16). When conducting a vehicle stop, officers may frisk an occupant of the vehicle if they reasonably believe that they may possess a weapon. People v. Feldman, 2014 NY Slip Op 1377 (1st Dept.) (Board Review 17).

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **exonerated**.

Allegation D – Abuse of Authority: Det. Paul O'Connor searched § 87(2)(b)

According to § 87(2)(b) after Det. O'Connor frisked him, he entered his pants pockets and took his wallet, keys, and cigarettes out of his pockets. Det. O'Connor also opened § 87(2)(b)'s cigarette box and asked him if he had any marijuana inside of it. (Board Review 01). Neither of the other civilians in the car mentioned that Det. O'Connor searched § 87(2)(b) (Board Review 10, Board Review 11).

Det. O'Connor stated that he did not enter any of § 87(2)(b)'s pockets or remove any items out from the pockets except for entering the one pocket to take the knife out after he frisked § 87(2)(b). Det. O'Connor took § 87(2)(b)'s wallet, keys and cigarettes out of his pockets once he was considered under arrest, when the knife in the car was found to be an illegal switchblade, but stated that he took these actions either before § 87(2)(b) was transported to the stationhouse or at the desk of the stationhouse. Det. O'Connor did not recall opening § 87(2)(b)'s cigarette box (Board Review 12, Board Review 13).

Contrary to a search incident to lawful arrest, a protective search must be confined in scope to an intrusion reasonably designed to discover guns, knives, clubs or other hidden instruments for the assault of the police officer. During a protective search, after a pat down fails to reveal a weapon, the search must stop. People v. Robinson, 125 A.D.2d 259 (1986) (Board Review 18).

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation E – Offensive Language: Det. Paul O'Connor made remarks to § 87(2)(b) based upon race.

§ 87(2)(b) stated that Det. O'Connor asked him, "What's up with the white boy in the back?" when he saw § 87(2)(b) sitting in the back seat. § 87(2)(b) told Det. O'Connor that § 87(2)(b) was his friend and Det. O'Connor told him that he did not look like the type to hang out with white boys (Board Review 01).

In his phone statement, § 87(2)(b) reported Det. O'Connor made a near identical statement (Board Review 10). In his phone statement, § 87(2)(b) stated that he did not hear the comment but was told by § 87(2)(b) that Det. O'Connor had made a comment along the lines of not expecting § 87(2)(b) or § 87(2)(b) to be the type of people to hang out with a guy like § 87(2)(b) (Board Review 11).

Det. O'Connor admitted to speaking to § 87(2)(b) at the driver's door but denied saying "What's up with the white boy?" or using the term "white boy" during the incident. He also denied telling § 87(2)(b) that he did not look like the type to hang out with white boys. Det. O'Connor did not hear Sgt. King say those things either and Sgt. King denied saying those things himself (Board Review).

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as **unsubstantiated**.

Allegation F – Abuse of Authority: Sgt. John King frisked § 87(2)(b) and § 87(2)(b)

It is undisputed that both § 87(2)(b) and § 87(2)(b) were frisked by Sgt. King after they were made to exit the vehicle (Board Review 10, Board Review 11).

Sgt. King stated that during the car stop, while the occupants were inside the vehicle, Det. O'Connor had communicated to him that there was a knife in the car but did not give Sgt. King any other information about where the knife was. Sgt. King asked § 87(2)(b) and § 87(2)(b) to exit the car because there was a knife inside the car; he first asked § 87(2)(b) to exit followed by § 87(2)(b). When each of the passengers exited the car, Sgt. King did not observe anything on either of them that made him believe they had weapons on them but patted each of their waistbands for his safety since there was a weapon in the car and his previous experiences have

taught him that if there is a weapon in the car, people in the car usually have weapons on them as well (Board Review 14, Board Review 15).

An officer may order a driver and a passenger out of a vehicle during a car stop for a traffic violation. People v. Robinson, 74 N.Y.2d 773 (1989) (Board Review 16). Once occupants of a vehicle stop are removed from the car, an officer may only conduct a frisk if he or she has reasonable suspicion that a passenger is armed and may be dangerous. People v. Russ, 61 N.Y.2d 693 (1984) (Board Review 19).

§ 87(2)(g)

Therefore, it is recommended that **Allegation F** be closed as **substantiated**.

Allegation G – Abuse of Authority: Sgt. John King searched § 87(2)(b)

In his verified statement, § 87(2)(b) stated that Sgt. King searched § 87(2)(b) but stated that he could not actually see the actions Sgt. King was making he just saw his hands on § 87(2)(b) (Board Review 01). In § 87(2)(b)'s phone statement, § 87(2)(b) stated that Sgt. King entered his jeans pockets after frisking him; § 87(2)(b) did not provide a verified statement (Board Review 10). In § 87(2)(b)'s phone statement, he could not articulate the exact actions he saw Sgt. King take when he “frisked” § 87(2)(b) because he was looking straight ahead when it happened; § 87(2)(b) assumed § 87(2)(b)'s frisk was similar to his own and he did not say he was searched by Sgt. King (Board Review 11).

Although Sgt. King admitted to patting § 87(2)(b)'s waistband and pockets, he denied placing his hand inside any of them (Board Review 14, Board Review 15). Det. O'Connor did not see any of the actions Sgt. King took with the passenger of the vehicle as he was at the back of the car and had his attention focused on § 87(2)(b) at the time (Board Review 12, Board Review 13).

§ 87(2)(g)

Therefore, it is recommended that **Allegation G** be closed as **unsubstantiated**.

Allegation H – Abuse of Authority: Det. Paul O'Connor searched § 87(2)(b)'s car.

It is undisputed that after all three civilians were taken out of the car and were standing at the back of the car, Det. O'Connor entered § 87(2)(b)'s car and retrieved a knife that was in the center console of the car.

§ 87(2)(b) denied that he ever entered the center console himself in order to get his license and registration and stated that he retrieved these items from his glove compartment. § 87(2)(b) stated that Det. O'Connor entered his car without saying anything about it or asking him for permission (Board Review 01, Board Review 23).

None of the vehicle occupants could see the areas Det. O'Connor searched in the car (Board Review 01, Board Review 10, Board Review 11). Only § 87(2)(b) stated in his phone

statement that Det. O'Connor told § 87(2)(b) that he was going to search his car and that § 87(2)(b) said okay.

Det. O'Connor stated that when § 87(2)(b) opened his center console to retrieve his documentation, he observed a folding knife in the car. Det. O'Connor could not tell if the knife was an illegal knife upon looking at it from outside of the car because all he could see was that it was a folding knife in the vicinity of § 87(2)(b). After all of the occupants were brought to stand at the back of the car with Sgt. King, Det. O'Connor entered the car to retrieve the observed folding knife. Det. O'Connor did not mention that he asked for consent to search § 87(2)(b)'s car. Det. O'Connor entered the car through the driver's door, looked down in his immediate vicinity to make sure there were no other knives in the area, and then entered the center console in order to retrieve the knife that he had seen. He did not enter any other compartments while in the vehicle. Upon retrieving the knife from the center console, he determined the knife to be an illegal switchblade (Board Review 12, Board Review 13). Sgt. King corroborated that Det. O'Connor entered the car through the driver's door but could not see where he searched in the car (Board Review 14, Board Review 15).

Merely observation of a clip, or even observation of a knife, does not provide reasonable suspicion of a crime and does not allow an officer to stop, frisk or search an individual unless the officer believes that the knife observed is unlawful. People v. Vargas, 2011 NY Slip Op 9457 (2011 App. Div. 1st Dept.) (Board review 20). An officer must have “specific and articulable” facts from which he or she infers that the defendant was carrying an illegal knife, as opposed to a lawful knife. People v. Brannon, 16 NY 30 596 (2011) (Board Review 21).

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Therefore, it is recommended that **Allegation H** be closed as **substantiated**.

§ 87(4-b), § 87(2)(g)

Squad:_____

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date